

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

PETER NHO,

Petitioner

VS.

ELISE TRAN,

Respondent

) Case Number: FPT-24-378443

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING; REQUEST FOR ORDER OF VISITATION (PARENTING TIME);
REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER, VISITATION
(PARENTING TIME); REQUEST FOR ORDER MOTION TO QUASH

TENTATIVE RULING

I. Custody and Visitation

The parties are ordered to appear via Zoom or in person at 10AM on 6/2/2026 in Department
404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for
Remote Appearance in San Francisco Family Court set forth above.

II. Mother's Motion to Quash

The parties are ordered to appear via Zoom or in person at 10AM on 6/2/2026 in Department
404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for
Remote Appearance in San Francisco Family Court set forth above.

Mother has not lodged with the Court which subpoena(s) she is seeking to quash. It also
appears that Father has already obtained many financial records for Mother, presumably as a
result of subpoena(s) he has issued. Mother shall clarify which subpoena(s) she is seeking to quash

1 and she shall be prepared to present to the Court a copy of the subpoena(s) she is seeking to quash.
2 Father shall be prepared to explain whether there are any subpoenas he served that remain
3 outstanding.
4

5 **A. Procedural History**

- 6 1) Also on for hearing is Mother's Request for Order filed 3/30/2026 asking the Court to quash "the
7 subpoena seeking my bank statements." Mother argues that the subpoena "requests all bank
8 records without clear limitation or direct relevance to the issues before the Court" and is thus
9 overbroad. Mother objects that there is no compelling justification to override her right to privacy
10 and that complying with the subpoena will cause her an undue burden particularly as she is the
11 sole, full-time caregiver of Kayleigh. Mother states she has already provided her March 2026
12 bank statement and that additional records are duplicative. Mother also states that she uses her
13 Bank of America account to withdraw cash on behalf of her roommate and sister who "assist me
14 through IHSS and does not have a debit bank account." Mother states these "transactions could be
15 misinterpreted as my own spending when they are not."
- 16 2) On 4/10/2026, Father filed a Responsive Declaration asking that the Court order full compliance
17 with the subpoena within 10 days of the Court's order and that the Court issue sanctions against
18 Mother in the amount of \$5,000 under Code of Civil Procedure sections 1987.2, 2023.010, and
19 2023.030, and Family Code section 271. Father argues that his subpoena is relevant to the
20 determination of accurate child support and that Mother's privacy rights must yield where
21 information sought is directly relevant to a material issue. Father also states that the subpoenas at
22 issue were issued to financial institutions and not to Mother directly and therefore do not require
23 Mother to expend time or resources to comply. Father argues that Mother's voluntary production
24 of one March bank statement is insufficient for understanding Mother's complete financial
25 picture and that Mother's argument that her financial records could be "misinterpreted" due to
26 transactions on behalf of third parties "underscores, rather than undermines, the need for full
27 financial disclosure" because "without complete records, it is impossible to evaluate the nature,
28 frequency, and legitimacy of such transaction." Father states that he is deserving of sanctions
29

1 because Mother's motion is not brought in good faith but is instead calculated to delay
2 proceedings and avoid disclosure of relevant financial information.

3 3) On 4/10/2026, Father filed a Memorandum of Points and Authorities stating that Mother operates
4 a business and receives payments through Venmo, Zelle, Cash App, and Apple Pay yet represents
5 that she earns little to no income. Father argues: California law requires full and accurate
6 disclosure of income; third-party subpoenas are proper and necessary where, as here, Mother has
7 failed to voluntarily disclose complete financial records; a motion to quash cannot be used to
8 shield relevant financial records from discovery in a child support proceeding; Mother's pattern
9 of non-disclosure constitutes discovery abuse warranting sanctions under Code of Civil Procedure
10 sections 2023.010 and 2023.030; sanctions are also warranted under Family Code section 271;
11 Mother's privacy objection does not justify quashing the subpoenas and a protective order is the
12 appropriate remedy; and the Court should order full compliance with the subpoenas and award
13 monetary sanctions.

14 4) On 4/10/2026, Father's attorney filed a declaration stating that Mother's motion fails to identify
15 which subpoenas Mother seeks to quash. Father's attorney states he has obtained various financial
16 documents pertaining to Mother and he has lodged them with the Court. Father's attorney states
17 he is filing his declaration to clarify that Mother's motion to quash provides no basis to prevent
18 the Court from reviewing and considering the documents lodged with the Court.

19 5) On 4/16/2026 and 4/28/2026, Father electronically lodged with the Court the following
20 documents: Mother's Bank of America Statements from December 2024 to December 2025;
21 Mother's Bank of America Statements from January 2026 to April 2026; Mother's Venmo and
22 PayPal Records Summary for March 2013 through April 2026; Mother's Venmo and PayPal
23 Transaction Records for January 2024 through April 2026, and Mother's Venmo and PayPal
24 Transaction Records for 2026.

25 6) Per the Proof of Service filed by Father on 4/17/2026, "Respondent's Financial Documents to be
26 Lodged Under Seal" were served on Mother by mail on 4/17/2026.

27 7) On 5/27/2026, Mother filed a Responsive Declaration wherein she incorrectly cites a hearing date
28 of 6/4/2026. Mother's Responsive Declaration references an MC-030, which the Court does not
29 see in the record, as well as an Income and Expense Declaration.

- 1 8) On 5/27/2026, Mother filed an Income and Expense Declaration wherein she states she earns
2 \$800 in net income per month from her business TheNailMami and receives \$1,192 per month in
3 child support from Father. Mother states her monthly expenses total \$3,100 and that \$3,000 of
4 those expenses are “paid by others.” Mother attached documentation which appears to show that
5 her partner and godmother provide her with financial assistance. Mother further states that she
6 has serious health conditions that severely limit her ability to maintain a stable job. Mother does
7 not specify what health conditions she suffers from, but attaches various records showing a
8 significant number of contacts with medical providers over the past couple of years as well as an
9 extensive list of medications prescribed to her. Mother states she cannot afford to pay the
10 attorney’s fees requested by Father.
- 11 9) On 5/27/2026, Mother filed a Proof of Service stating that various (unspecified) documents were
12 faxed to Father’s attorney on 5/27/2026.
- 13 10) On 5/28/2026, Father’s attorney filed a declaration wherein he incorrectly cites a hearing date of
14 6/4/2026. Father’s attorney states he did not receive a copy of Mother’s Responsive Declaration
15 or Income and Expense Declaration filed 5/27/2026, which he only learned about by reviewing
16 the Court’s docket.
- 17 11) The Court notes there is a future hearing currently set for 6/16/2026 on Father’s Request for
18 Order filed on 4/10/2026 wherein Father requests the Court to modify the child support order
19 filed in related Case No. FCS-24-356892 based on changes to Father’s employment and income.
20 Father also alleges that Mother is underreporting or failing to fully disclose her income.

21 **B. Findings and Order**

- 22 1) **Mother has not lodged with the Court which subpoena(s) she is seeking to quash. It also**
23 **appears that Father has already obtained many financial records for Mother, presumably**
24 **as a result of subpoena(s) he has issued. The parties are ordered to appear. Mother shall**
25 **clarify which subpoena(s) she is seeking to quash and she shall be prepared to present to the**
26 **Court a copy of the subpoena(s) she is seeking to quash. Father shall be prepared to explain**
27 **whether there are any subpoenas he served that remain outstanding.**
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